



UNITED STATES PATENT AND TRADEMARK OFFICE

OFFICE OF THE GENERAL COUNSEL

October 9, 2014

VIA U.S. MAIL



Re: *Freedom of Information Act (FOIA) Request No. F-15-00004*

Dear Ms. Gaudry:

The United States Patent and Trademark Office (USPTO) FOIA Office received your e-mail dated October 2, 2014, in which you posed the following questions, under the provisions of the Freedom of Information Act, 5 U.S.C. § 552:

- 1) What are the currently identified potential SAWS subject matters (e.g., subject matters of special interest for each technology center and coprs-wide potential SAWS subject matter); and
- 2) For applications determined to contain SAWS material, what is the protocol for review of the application? For example, who is involved in searching for prior art, identifying whether a rejection is to be made, determining whether an application is to be allowed, and/or reviewing a draft Act (e.g., Office Action or Notice of Allowance).

Please be aware that the FOIA is a means by which members of the public can obtain Agency records in existence at the time of the request. It cannot provide answers to questions or create new records in order to respond to FOIA requests. See *Hudgins v. Internal Revenue Serv.*, 620 F. Supp. 19, 21 (D.D.C. 1985).

However, the USPTO has identified forty-three (43) pages of records that it believes are responsive to your request. A copy of this material is enclosed.

Your request is considered complete with full disclosure. However, you have the right to appeal this initial determination to the General Counsel, United States Patent and Trademark Office, P.O. Box 1450, Alexandria, VA 22313-1450. An appeal must be received within 30 calendar days from the date of this letter. See 37 C.F.R. § 102.10(a). The appeal must be in writing. You must include a copy of your original request, this letter, and a statement of the reasons why this response is deficient. Both the letter and the envelope must be clearly marked "Freedom of Information Appeal."